

M/s Akanksha Steels Pvt. Ltd. v. U.P. Power Corporation Ltd. & Others

Allahabad High Court · Division Bench · 11 July 2025 · 2025:AHC:111280-DB · Writ - C No. 2266 of 2008 · **Writ disposed of; liberty to approach CGRF under Clause 7.10 within three weeks; Forum to decide within two months**

HEADNOTE

A writ challenging a demand towards permanent disconnection on the ground that the bills were not correctly issued is for the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005, once that forum has been constituted. Factual billing issues can more appropriately be examined there. The writ is disposed of with liberty to approach the Forum with a certified copy of the order within three weeks; if a grievance is raised, the Forum shall pass appropriate orders in terms of the statutory scheme within two months thereafter. The Court did not decide whether the bills or the Rs. 8,54,004 demand were correct.

FACTUAL SUMMARY

M/s Akanksha Steels Pvt. Ltd. filed Writ-C No. 2266 of 2008 against U.P. Power Corporation Ltd. challenging a communication dated 22 August 2007 (Annexure 12) that demanded Rs. 8,54,004 towards permanent disconnection. The company said the bills had not been correctly issued. The petition remained pending for years, with repeated adjournments for illness slips, a last opportunity to file a counter affidavit, and time to file a rejoinder.

When the matter was heard on 11 July 2025, counsel for the parties stated that during the pendency of the writ the Consumer Grievance Redressal Forum had been constituted by the U.P. Electricity Regulatory Commission under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Billing grievance on a permanent-disconnection demand belongs to CGRF under Clause 7.10

QUESTION

Where a consumer challenges a permanent-disconnection demand as incorrectly billed, and CGRF has been constituted under Clause 7.10 during the pendency of the writ, will the High Court decide the billing dispute?

HOLDING

No. Factual issues raised in the writ can more appropriately be examined by the competent forum under Clause 7.10. The writ is disposed of with liberty to the petitioner to approach the Consumer Grievance Redressal Forum, with a certified copy of the order, within three weeks; if such a grievance is raised, the Forum shall pass appropriate orders in terms of the statutory scheme within two months thereafter. ¶ 3-4

QUALIFIER

The Court did not examine whether the bills were correctly issued or the Rs. 8,54,004 demand towards permanent disconnection.

FLAG Source PDF also contains listing and adjournment orders from 11.8.2010 through 2.5.2023 (illness slips; time for counter and rejoinder). The operative disposal is 11.7.2025 (neutral citation 2025:AHC:111280-DB).

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A challenge to a Rs. 8,54,004 demand towards permanent disconnection, on the ground that bills were incorrectly issued, is for CGRF under Clause 7.10 once that forum has been constituted, even where the writ has been pending since 2008. Same cluster as SCJ-096, SCJ-197, SCJ-217, SCJ-350, SCJ-384. ¶ 3-4

alternative-remedy-relegation

The writ court will not decide a billing dispute once CGRF under Clause 7.10 is available; the consumer is given a timed liberty to approach that Forum. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLS AND OF THE DEMAND OF RS. 8,54,004 TOWARDS PERMANENT DISCONNECTION

The petitioner's case was that the bills had not been correctly issued. Left to CGRF under Clause 7.10. ¶ 1-4

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.